

1 ENGROSSED HOUSE
2 BILL NO. 3006

By: Kendrix of the House

3 and

4 Bergstrom of the Senate

5
6
7 An Act relating to schools; amending 70 O.S. 2021,
8 Section 3-173, as amended by Section 1, Chapter 306,
9 O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-173),
10 which relates to the Oklahoma Advisory Council on
11 Indian Education; extending sunset date; providing an
12 effective date; and declaring an emergency.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-173, as
15 amended by Section 1, Chapter 306, O.S.L. 2023 (70 O.S. Supp. 2025,
16 Section 3-173), is amended to read as follows:

17 Section 3-173. A. There is hereby re-created to continue until
18 July 1, ~~2026~~ 2031, in accordance with the provisions of the Oklahoma
19 Sunset Law, the Oklahoma Advisory Council on Indian Education.

20 B. The Council shall:

21 1. Make recommendations to the State Board of Education and the
22 Superintendent of Public Instruction in educational matters
23 affecting the education of Native American students;

1 2. Promote educational opportunities and improvement of the
2 quality of education provided to Native American students throughout
3 the state;

4 3. Advocate for Native American students in the state; and

5 4. Monitor and evaluate how the public education system of the
6 state impacts Native American students.

7 C. The Council shall be composed of eighteen (18) members as
8 follows:

9 1. Five members who shall each represent an Indian tribe in the
10 state, of which at least one shall represent an Indian tribe which
11 has an enrollment of less than ten thousand (10,000) members who
12 reside in the state, appointed by the Speaker of the House of
13 Representatives from a list of nominations submitted by the elected
14 executive leaders of different Indian tribes in the state;

15 2. Four members who shall each represent the tribal education
16 departments of an Indian tribe in the state, appointed by the
17 President Pro Tempore of the Senate from a list of nominations
18 submitted by the elected executive leaders of different Indian
19 tribes in the state;

20 3. One member who shall represent the Oklahoma Council for
21 Indian Education, appointed by the Governor;

22 4. Two members who shall represent two different statewide
23 organizations representing public school teachers, appointed by the
24 President Pro Tempore of the Senate;

1 5. One member who shall represent a statewide organization
2 representing public school superintendents, appointed by the Speaker
3 of the House of Representatives;

4 6. One member who shall represent Oklahoma tribal colleges,
5 appointed by the Chancellor of Higher Education;

6 7. The Director of the Native American Cultural and Educational
7 Authority, or designee;

8 8. The Chancellor of Higher Education, or designee;

9 9. The Director of the Oklahoma Department of Career and
10 Technology Education, or designee; and

11 10. The Superintendent of Public Instruction, or designee.

12 D. Appointments to the Council shall be made by September 1,
13 2023. The first meeting of the Council shall be called by the
14 Superintendent of Public Instruction. At the first meeting, the
15 members of the Council shall elect a chair and vice chair from among
16 the members. Meetings of the Council shall be held at least
17 quarterly at the call of the chair. Members shall serve at the
18 pleasure of their appointing authorities. A majority of the members
19 of the Council shall constitute a quorum to transact business, but
20 no vacancy shall impair the right of the remaining members to
21 exercise all of the powers of the Council. A vacancy on the Council
22 shall be filled by the original appointing authority. A vacancy on
23 the Council in a seat representing an Indian tribe in the state or
24 the tribal education department of an Indian tribe in the state may

1 be filled by the original appointing authority from a list of
2 nominations submitted by the elected executive leaders of Indian
3 tribes in the state. Appointments to fill any vacancy on the
4 Council shall be made within three (3) months following the vacancy.
5 The State Department of Education, Oklahoma Department of Career and
6 Technology Education, and the Oklahoma State Regents for Higher
7 Education shall provide staff, support, and information as requested
8 by the Council.

9 E. Members of the Council shall receive no compensation for
10 serving on the Council but shall receive travel reimbursement as
11 follows:

12 1. State employees who are members of the Council shall be
13 reimbursed for travel expenses incurred in the performance of their
14 duties by their respective agencies in accordance with the State
15 Travel Reimbursement Act; and

16 2. All other members of the Council shall be reimbursed by the
17 Office of Management and Enterprise Services for travel expenses
18 incurred in the performance of their duties in accordance with the
19 State Travel Reimbursement Act.

20 F. The Council shall act in accordance with the provisions of
21 the Oklahoma Open Meeting Act and the Oklahoma Open Records Act.

22 G. Members who serve on the Council shall be exempt from the
23 dual-office-holding prohibitions of Section 6 of Title 51 of the
24 Oklahoma Statutes.

1 H. The Council shall have the following duties:

2 1. Identify strategies for developing an efficient and reliable
3 process of communications between Oklahoma education entities,
4 educators, tribal organizations, and other interested parties;

5 2. Identify and disseminate research-based, measurable
6 criteria, both behavioral and academic, by which the success and
7 efficacy of the education offered to Native American students in
8 Oklahoma may be measured;

9 3. Analyze data to ensure that education agencies in Oklahoma
10 continue to address the education needs of Native American students;

11 4. Encourage and promote Native American educational leadership
12 at all levels of the education system; and

13 5. Make recommendations to the State Board of Education for
14 programs that will help achieve the purposes of the Oklahoma
15 Advisory Council on Indian Education Act.

16 I. The Council shall evaluate and make an annual report on the
17 effectiveness of the public education system in Oklahoma in meeting
18 the needs of Native American students in Oklahoma. The report shall
19 be submitted to the State Board of Education. The report shall also
20 contain a summary of the findings made by the Council pursuant to
21 subsection H of this section, a summary of all data collected by the
22 Council, a summary of the means by which all data was collected by
23 the Council, and any other information deemed necessary by the
24 Council.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 12th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate